

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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STAFELD SYLVAIN,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentCITY OF NEW YORK, NYPD POLICE OFFICER
HAIDER C. MAHMOOD, SHIELD NO. 27245, NYPD
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 8, 2023

Yours, etc.

Lara Belkin, Esq.
Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

HAIDER C. MAHMOOD, Shield No. 27245, 70th Precinct, 154 Lawrence Avenue,
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

STAFELD SYLVAIN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, NYPD POLICE OFFICER
HAIDER C. MAHMOOD, SHIELD NO. 27245, NYPD
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff STAFELD SYLVAIN, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 19, 2022, at approximately 7:45 p.m., Plaintiff Stafeld Sylvain, was subjected to an unlawful stop, detention, use of excessive force and false imprisonment by defendant NYPD Officers, while lawfully present in the vicinity of East 31st Street and Glenwood Road in Brooklyn, NY. Plaintiff spent approximately twenty-six hours unlawfully detained in police custody. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the Kings District Attorney's Office. All charges against Plaintiff were dismissed on or around November 21, 2022. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

1. Plaintiff Stafeld Sylvain is a resident of the state of New York.

2. At all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. New York City Police Officer Haider C. Mahmood, Shield No. 27245, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Haider C. Mahmood, Shield No. 27245, is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Haider C. Mahmood, Shield No. 27245, was assigned to the 70th Precinct.

6. New York City Police Officers John Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

8. Currently and at all times relevant herein, New York City Police Officers John Does #1-10 were assigned to the 70th Precinct.

9. At all times relevant herein, defendants Mahmood and Does were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On August 19, 2022, at approximately 7:45 p.m., Plaintiff was lawfully in the vicinity of East 31st Street and Glenwood Road in Brooklyn, NY.

15. Plaintiff was leaving East 31st Street and Glenwood Road to go walk to a store located on Nostrand when suddenly, without reasonable suspicion or probable cause, he was tackled to the ground by four police officers.

16. The defendant officers held down Plaintiff down, pulling on his arms and legs at the same time they were ordering him to put his hands behind his back. Defendant was trying to comply with defendant officers orders even as they grabbed his limbs and piled on top of his back.

17. Plaintiff was placed in metal handcuffs, yanked onto his feet and pushed against a metal fence. As he stood there, another ten police officers arrived on the scene.

18. At no time prior to being tackled by the officers did Plaintiff commit a crime or behave in a manner that gave the police officers reasonable suspicion or an objective credible basis to believe he had committed or was committing a crime.

19. At no point did Plaintiff resist arrest in any way.

20. Defendant Police Officers lifted Plaintiff up into the air and dragged him to a police vehicle.

21. Defendant officers conducted a pat-down search of Plaintiff's person before he was placed in the police car. No weapons or illegal contraband were recovered from Plaintiff.

22. Once in the police vehicle, Plaintiff was informed that he was under arrest for a bottle of alcohol that the defendant officers found on the ground.

23. Plaintiff was transported to the 70th Precinct, where his property was vouchered, and Plaintiff was placed in a holding cell.

24. Plaintiff requested medical attention for his leg and was brought to Maimonides Hospital in handcuffs after spending half an hour in the 70th Precinct.

25. At Maimonides Hospital, Plaintiff's wrists and legs were shackled. Plaintiff was treated at the hospital for approximately twelve hours.

26. Plaintiff was then transported to the 70th Precinct where he was held for six hours before being transferred to Central Booking

27. After eight hours in Central Booking, Plaintiff was brought to court for his arraignment. He was released on his own recognizance.

28. While Plaintiff was in custody, the defendant Police Officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff had committed a crime.

29. Plaintiff appeared in court approximately three times.

30. On November 21, 2022, all charges against Plaintiff were dismissed and sealed.

31. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective, credible reason to accuse Plaintiff of committing a crime or violating the law in any way.

32. Plaintiff sought medical treatment at Citimed in Brooklyn for injuries to his right arm and leg caused the violent tactics used by defendant officers in this incident. Plaintiff is currently in physical therapy for treatment of those injuries.

33. As a result of this unlawful arrest, Plaintiff has difficulty sleeping and becomes anxious and nervous whenever he comes across police officers.

34. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff's person or from a location that was in Plaintiff's possession, custody, or control.

35. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

36. Plaintiff continues to suffer emotional trauma and distress from the actions of defendant officers complained of above.

37. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

38. The unlawful seizure, arrest, and imprisonment by the individually named defendants caused Plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

1. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
2. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
3. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
4. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
5. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
6. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

7. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
8. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
9. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

10. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
11. The acts and conduct of the defendants constitute false arrest and false imprisonment under

the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

12. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.
13. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
14. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondent superior*.
15. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION **Negligent Infliction of Emotional Distress**

16. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
17. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
18. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
19. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
20. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
21. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
22. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment****Rights: Excessive Force**

23. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
24. The use of excessive force by defendants by, amongst other things, roughly handcuffing, pushing up against a metal fence, then grabbing and dragging Plaintiff into a vehicle constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.
25. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

26. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
27. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
28. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Failure to Intervene**

29. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
30. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
31. Defendants failed to intervene to prevent the unlawful conduct described herein.
32. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical

constraints.

33. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
35. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
36. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

37. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
38. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.
39. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.
40. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.
41. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
42. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
44. The City, as the employer of the officer Defendants, is responsible for their wrongdoing

under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Malicious Prosecution

46. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
47. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
48. Defendants commenced and continued a criminal proceeding against Plaintiff.
49. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.
50. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

51. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
52. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
53. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
54. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
55. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

56. By reason of the acts and omissions by Defendants described above, Plaintiff has endured psychological and emotional injuries.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
58. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
- i. freedom from unreasonable search and seizure of her person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
 - v. freedom from deprivation of liberty without due process of law.
59. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.
60. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.
61. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

62. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff STAFELD SYLVAIN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate

under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 8, 2023

By: Lara Belkin, Esq.
Lara Belkin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

HAIDER C. MAHMOOD, Shield No. 27245, 70th Precinct, 154 Lawrence Avenue,
Brooklyn, NY 11230

ATTORNEY'S VERIFICATION

LARA BELKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
February 8, 2023



LARA BELKIN